

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Interim Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, May 16, 2025, Contents noted. Recommend approval of the negotiated plea agreement in PODS No. C-32737 against Det. Michael Sinclair, Tax Registry No. 937545. The case was conferenced on April 3, 2025, before Assistant Deputy Commissioner of Trials Paul M. Gamble, Sr., who approved the negotiated penalty of a Command Discipline "A" and the forfeiture of 5 vacation days for PODS No. C-32737, after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

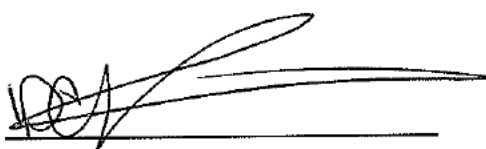
CASE NO.
C-032737BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE DT2	SURNAME, SINCLAIR	FIRST MICHAEL	M.I.	COMMAND 579
SHIELD NO. 3286	TAX REGISTRY NO. 937545	SOCIAL SECURITY NO.		DATE APPOINTED
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Detective Michael SINCLAIR, on or about August 8, 2023, at approximately 0733, while assigned to WARRSEC and on duty, in the vicinity of [REDACTED] Queens County, abused his authority as a member of the New York City Police Department, in that Detective Sinclair entered [REDACTED] in Queens without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Detective Michael SINCLAIR, on or about August 8, 2023, at approximately 0733, while assigned to WARRSEC and on duty, in the vicinity of [REDACTED] Queens County, abused his authority as a member of the New York City Police Department, in that Detective Sinclair searched [REDACTED] in Queens without sufficient legal authority.	DISMISSED	VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER6/3/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER6/6/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
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Page 2 of 2

PERSONNEL ORDER NO.

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SHIELD NO. 3286	TAX REGISTRY NO. 937545	SOCIAL SECURITY NO.	DATE APPOINTED	
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DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Detective Michael SINCLAIR, on or about August 8, 2023, at approximately 0733, while assigned to WARRSEC and on duty, in the vicinity of [REDACTED] Queens County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that Detective Sinclair failed to obtain language interpretation services for [REDACTED] without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER

6/3/25
DATE

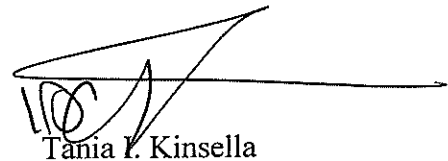
POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

6/6/25
DATE

THIRD ENDORSEMENT

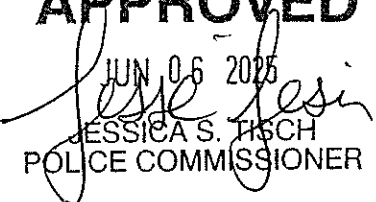
First Deputy Commissioner to Police Commissioner, June 3, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-032737 (CCRB Case No. 202308033) against Detective Michael Sinclair, Tax No. 937545, with the recommendation that the Charges and Specifications against Detective Sinclair be dismissed and that Detective Sinclair receive a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days. Assistant Deputy Commissioner, Trials Paul M. Gamble, Sr., reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania F. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED
JUN 06 2025

JESSICA S. TISCH
POLICE COMMISSIONER